THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o n the Internati on al Haritime Organization concerning the function of the Committee con ferred upon it by international conventions Ear the prevention and con trol of marine po l lut ion, NOTING articl e 16 o f the International Conve ntion fo r the Preventi on of Poll ut i on from Shi ps, 1973 (hereinafter referre d to as the "1973 Convention") and a rticle VI of th e Protocol of 1978 r elating to the International Conventio n for the Pr even tio n of Pollution from Ships , 1973 (hereinafter referred to as the " 1978 Protoco l") which together specify the amendment procedure of the 1978 Protocol and confers upon the appropriate body of the - Conventio n for the Preven tio n of Pollution from Ships , 1973 (hereinafter referred to as the " 1978 Protocol") which together specify the amendm ent procedure of the 1978 Protocol and confers upon the appropriate body of the Organiza tion the function of considering and adopti ng amendments t o the 1973 Convention, as mo dified by the 1978 Protocol (HARPOL 73/78), RECOGNIZING that when liqui d chemical waste s are transported by sea the y sho uld be car r ied in accordance with the relevant inte rnational r ecommendation s or conventions, NOTING ALSO that it is hig hly desirable for the provisions of the IBC Code which are mandatory under HARPOL 73/78 and the 1974 SOLAS Convention t o remain identi cal under both conve ntions, HAVING CONSIDERED, at its thir ty-third session , the amendments to the Code proposed by the Sub-Committee on Bulk Chem icals at its twenty-first sessio n and cir cula t ed in acco r dance with article 16(2)(a) of the 1973 Conve nti on , 1.

ADOPTS in accorda nce with article 16(2)(d) of the 1973 Convention amendments to the IBC Code, the text of which is se t out in the annex to the present resolution; - 1973 Conve nti on , 1.

ADOPTS in accorda nce with article 16(2)(d) of the 1973 Convention amendments to the IBC Code, the text of which is se t out in the annex to the present resolution; 2.

DETERMINES, in accordance with article 16(2)(f)(ii i) of the 1973 Convention, that the amendments shall be deemed to have been accepte d on 1 January 1994, or on the da te det e rmined by the HSC on whi ch cor responding amendments Eor the purposes of the 1974 SOL AS Convention are deemed to have been accepted in accordance with arti cle VIII(b) (vi)(2) there of, whi cheve r occurs later, unless pri or t o th at da te, not le ss than one third of the Parties or the Parties, the combined merchant fle ets of which constitute n ot less than fif t y per cent o f the gross to nnage of the worl d's merc hant f l ee t , have communica t ed to t he Organizati